

The Homestead Act — in Plain Words

Chunked plain-language version (≈ reading grade 3-4)

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TEACHER PLANNING REFERENCE — NOT FOR STUDENT DISTRIBUTION

Use this to plan your questions and check understanding. Students read the primary source (the reading and/or the two-column chart) — this simplified version stays with you.

Section 1

- Any adult 21 or older, or the head of a family,
- who is a U.S. citizen (or is becoming one),
- and who never fought against the United States,
- could claim up to 160 acres (a quarter section) of public land.
- Most of that land cost \$1.25 an acre or less.
- Smaller 80-acre plots cost \$2.50 an acre.
- The land had to be in one block and already surveyed.

Section 2

- To apply, you went to the land office and signed a sworn statement (an affidavit).
- You swore you were 21+, a head of family, or a veteran,
- that you never fought against the U.S.,
- and that the land was for your own farm — not secretly for someone else.
- You paid a \$10 fee and could then claim the land.
- But you did not get the title (patent) for five years.
- After five years, two witnesses had to prove you lived on and farmed the land.
- You also swore you had not sold any of it and had stayed loyal to the U.S.
- Then, if a citizen, you finally got the title to the land.

Section 3

- The land officer recorded every claim in official books,
- and sent the records and proof to the main Land Office.

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Section 4

- Old debts could not be used to take your homestead before you earned the title.

Section 5

- If you moved away or left the land for more than six months,
- you lost it — the land went back to the government.

This is a plain-language paraphrase for teacher planning — it is not the primary source. The verbatim law is on the student reading.

Paraphrase of the Homestead Act of 1862 (12 Stat. 392, public domain), by TroopToTeacher Technologies LLC · Generated 2026-08-11T11:45:57Z

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